



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

SEP 29 2000

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12148

EXPIRATION DATE: **May 31, 2002**

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Eastman Kodak Company
Rochester, New York
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of not more than 25 grams of organic peroxides or self-reactive substances that have energy density not significantly greater than that of pentaerythritol tetranitrate, classed as Division 1.4E, when packed in a special shipping container. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.320, 173.3, 173.52, 173.54, 173.60, 174.3, 175.3, 177.801.
5. BASIS: This exemption is based on the application of Eastman Kodak Company dated August 13, 1998, submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Articles, explosive, n.o.s. (*)	1.4E	UN0471	II

* Technical name of material being shipped

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7. SAFETY CONTROL MEASURES: Inside packaging must be:

a. A 4-inch X 14-inch Schedule 80 seamless steel pipe nipple closed at both ends with 4-inch diameter forged steel end caps, 3,000 psi per ASTM 105, or other caps which have been shown by test to contain the explosive effect of 25 grams of PETN, or

b. A 6-inch X 12 to 14-inch Schedule 80 seamless steel pipe nipple closed at both ends with 6-inch diameter malleable iron end caps with a minimum strength of 250 psi, or other caps which have been shown by test to contain the explosive effect of 25 grams of PETN.

For pipe nipples described in paragraphs a and b, the threads must be cut so that the end caps can be screwed on a minimum of 5 threads by hand, but the caps must be tightened with a wrench.

c. The energetic materials must be sealed in a leak-proof receptacle centered internally in the pipe or wrapped with cushioning material to keep the energetic material away from the side walls and ends of the capped pipe container.

d. The assembled device(s) must be packaged in accordance with § 173.212(b) with a sufficient quantity of non-reactive cushioning material to immobilize the device(s) and fill all void spaces in the completed package.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. For purposes of domestic transportation by air in accordance with § 171.11, this document also constitutes an exemption to the International Civil Aviation Organization Technical Instructions on the Safe Transport of Dangerous Goods by air in accordance with Part 1;1.1.1.

d. The EX-number marking requirements of § 172.320 are waived.

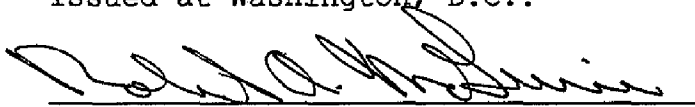
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo only aircraft.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each aircraft or motor vehicle used to transport packages covered by this exemption. The shipper must furnish a current copy of this exemption to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving fire, explosion or loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, SW, Washington, DC, 20590-0001, Attention: Records Center, 202-366-5046.

PO: rdt